



Estia Health - Norsan residential aged care business
MN-35013

Phase 1 Determination

Acquisition may be put into effect

4 May 2025

1. Determination and statement of reasons

Notified acquisition	Estia Investments Pty. Ltd. (Estia) proposes to acquire substantially all of the business assets of three residential aged care homes from Norsan Pty Ltd (Norsan), being Chirnside Views Residential Aged Care (Chirnside Views), Park Lane Croydon Residential Aged Care (Park Lane Croydon) and Willowbrae - Melton Residential Aged Care (Willowbrae – Melton) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Estia is a registered provider of residential care services under the <i>Aged Care Act 2024</i> (Cth) (ACA). Estia and its wholly owned subsidiaries currently operate over 90 residential aged care homes across Victoria, New South Wales, Queensland, and South Australia. Norsan is a small family-owned supplier of three residential aged care services operating in certain parts of metropolitan Melbourne and outer Melbourne suburbs. Norsan is also a registered provider of residential care services under the ACA.
Overlap between the parties	Estia and Norsan overlap in the supply of residential aged care facilities in Melbourne.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The aggregation arising from the Acquisition, and taking into account previous acquisitions by Estia within the same local area as the Norsan facilities in the last three years, is not significant at a local or regional level (nor at the national level). • Estia will likely continue to face competition from alternative suppliers of residential aged care facilities in the local areas surrounding each of Chirnside Views, Park Lane Croydon and Willowbrae – Melton.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**